experience of counsel. In my opinion an important question that has emerged from the present case and has serious ramification for the rule of law in India is with reference to the scale of fees fixed by the LASA for sessions court trials. The legal aid fee schedule, under the Legal Aid Services Authorities Act, provides for a paltry fee for Rupees 600 per effective hearing to the maximum of Rs 3000 for sessions cases (involving life imprisonment or death sentence) for the advocates. The 'High Court rules' referred to above, after amendment in 2003, for trials under Section 302 IPC, provide a fee of Rs 500 for preparation and first hearing in the murder trial and Rs 300 per subsequent effective to a maximum of Rs 5000. This fee schedule makes the right to fair representation illusory and a mockery of the right to effective legal aid and is therefore not in consonance with the right guaranteed under Article 21 of the Constitution of India. Anything short of appropriate and adequate fees for counsel for indigent and unrepresented accused results in two sets of standards of access to justice, one for the rich and the other for the poor.

7. Mr S. Murlidhar, (who is now an Hon'ble Judge of the Delhi High Court) in chapter 3 of his book *Law, Poverty and Legal Aid*(*Access to Criminal Justice*) has observed that it could be persuasively argued that the denial of these elements—(i) right to counsel immediately upon arrest, (ii) extension of the right to counsel to all subsequent stages where the arrested person will have to resist the consequences of his arraignment, trial, revision and appeal, (iii) the right of choice of counsel—of the right to a person who is unable to engage his own counsel, only on account of his being economically or socially disadvantaged, would violate the right to equality. Therefore the right to legal assistance at state expense if reconciled with the right under Article 22 (1) cannot partake of a different character in terms of scope and content. By pleading the inability of the state to afford this right on equal terms, it is sought to be treated as a directive principle which, it is submitted, is inconsistent with its recognition as a non-derogable fundamental right.
8. In my opinion, the failure to provide effective and adequate legal aid has resulted in 'constitutional error' because it affects the framework within which a trial proceeds and requires no proof of prejudice.